

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

BRANDON MALLOY and JONATHAN
MALLOY,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT,
DETECTIVE REDMOND HALPERN
#952823 and police officers
whose names are yet unknown,

Defendants.

VERIFIED COMPLAINT

INDEX NO.:

159983/2021

NYC CLAIM NO.:

2020PI028499 (BRANDON MALLOY) &
2020PI028500 (JONATHAN MALLOY)

BRANDON MALLOY and JONATHAN MALLOY, by their attorney, Elliot
H. Fuld, complain of the defendants and allege, upon information and
belief as follows:

1. BRANDON MALLOY and JONATHAN MALLOY were, at the times of the
incident described in this Complaint, residents of the City and State
of New York, County of Bronx.

2. DETECTIVE REDMOND HALPERN #952823 and police officers whose
names are yet unknown were and at all times stated herein and upon
information and belief, are police officers with the New York City
Police Department with regards to the incidents described herein.

3. DETECTIVE REDMOND HALPERN #952823 and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, DETECTIVE REDMOND HALPERN #952823 and police officers whose names are yet unknown, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about November 10, 2020, at approximately 10:30 P.M., police officers, for no reason other than the color of their skin, forcibly seized and detained Plaintiffs while they were at a restaurant located at or near 54th Street and Tenth Avenue in New York County.

7. The detention began with between five and ten officers rushing

into the restaurant with guns drawn, screaming at Plaintiffs to "get down" and put their "hands up" and to "not move". The officers put their loaded weapons against Plaintiffs' heads and their necks, pushed Plaintiffs' heads onto the restaurant table told them not to "fucking move" and asked them "where is the gun?".

8. When Plaintiffs asked why this was occurring, the Defendants stated to Plaintiffs to "shut the fuck up". The officers then handcuffed Plaintiffs, brought them to the Midtown North Precinct on 54th Street where the Defendants fingerprinted and photographed Plaintiffs and read Plaintiffs their Miranda rights.

9. The officers then showed Plaintiffs a video and inquired if Plaintiffs recognized any person in that video. The people depicted in the video were black, the Plaintiffs who were lawfully having dinner in the restaurant were black and the reason Defendants seized Plaintiffs were simply because they were black.

10. The detention and of the Plaintiffs by those officers at the precinct continued until approximately 7:00 A.M. on November 11, 2021. At that time the Defendants issued a desk appearance ticket to BRANDON MALLOY charging him with possession of a weapon and to JONATAHAN MALLOY charging him with possession of marijuana. There

was no basis for either charge and the Defendants used the issuance of those instruments to cover their illegal detention and assault of Plaintiff for ten (10) hours.

11. The New York County declined to prosecute the case against BRANDON MALLOY and the marijuana summons against JONATHAN MALLOY was dismissed.

12. On or about November 12, 2020, Plaintiffs, by counsel, served upon the Comptroller of the City of New York, a Notice of Claim as required by the General Municipal Law.

13. That more than thirty (30) days have elapsed since the service of that Claim and since the General Municipal Law §50-h hearings were conducted on January 19, 2021 and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of February 10, 2021.

15. As a result of the false arrest of Plaintiffs by defendants, Plaintiffs demands judgment against the Defendants and were damaged

in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiffs were falsely imprisoned.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been held as prisoners.

19. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose employment and earning potential.

21. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

24. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

25. The Defendants continued a pattern of racial profiling and the harassment and civil rights violations against African Americans by stopping, detaining and assaulting Plaintiffs simply because they were black and sitting in an upscale restaurant

26. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

27. Plaintiffs repeat all the allegations contained in paragraphs "1" through "26" inclusive as though more fully set forth herein.
28. The Defendants commenced criminal prosecutions against Plaintiffs requiring Plaintiffs to devote time and effort to appearing in court only to discover that the charges had been dismissed or that the District Attorney refused to prosecute them.
29. The prosecution herein was without cause or justification and was commenced with malice.
30. In view of the foregoing, Plaintiffs has been damaged in the amount of Five Hundred Thousand (\$500,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of Five Hundred Thousand (\$500,000.00) Dollars; and
- b. On the Second Cause of Action, the sum of Five Hundred Thousand (\$500,000.00) Dollars; and
- c. On the Third Cause of Action, the sum of Five Hundred Thousand

(\$500,000.00) Dollars; and

d. On the Fourth Cause of Action, the sum of Five Hundred Thousand

(\$500,000.00) Dollars; and

For punitive damages in the amount of \$250,000.00.

Dated: November 3, 2021

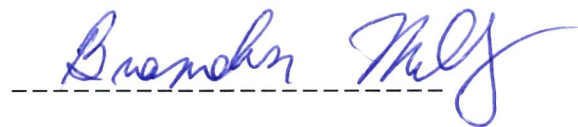


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STATE OF NEW YORK
COUNTY OF THE BRONX: ss

BRANDON MALLOY and JONATHAN MALLOY, being duly sworn, deposes and says:

We are the Plaintiffs herein, and we verify that all the statements contained in the attached Complaint have been obtained through a review of documents pertaining to this case and upon information and belief, are true.



BRANDON MALLOY



JONATHAN MALLOY

Duly Sworn to this 3RD
day of November, 2021


ANA POLANCO
Notary Public, State of New York
Reg. No. 01PO6133973
Qualified in Bronx County
Commission Expires Sept. 19, 2025